

		This order is without prejudice to the right of any person to seek an order unsealing the sealed documents pursuant to CRC, Rule 2.551(h).
01534775	Watkins - Minor's Compromise	TENTATIVE RULING Case: Watkins - Minor's Compromise 01534775 Calendar No: 10 Date: 09/09/26 MOTION TO SEAL (ROA 4) Petitioner G.R. ("Petitioner") moves to seal specified portions of the following documents: 1. Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds for Minor (ROA 3); 2. Amended Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds for Minor (ROA 17); 3. Response to Probate Notes (ROA 15); 4. Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (ROA 23); 5. Motion to Seal Petition for Approval of Minor's Compromise (ROA 4); 6. Order re: Motion to Seal Petition for Approval of Minor's Compromise (ROA 35); and 7. Amended Motion to Seal (ROA 29). On the court's own motion, the court adds the Declaration of Courtney Kiehl (ROA 32) filed 8/24/26. The court notes that Petitioner has filed public redacted versions of each of the foregoing documents, except for the initial Motion to Seal (ROA 4). As to the initial Motion to Seal, there does not appear to be a need for redaction. Counsel should be prepared to discuss. Unless confidentiality is required by statute or rule of court, California court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550(c).) "Probate

		proceedings, including a petition for minor’s compromise, are not closed proceedings. No statute exempts probate files from the status of public records.” (<i>Copley Press, Inc. v. Superior Court</i> (1998) 63 Cal.App.4th 367, 376.) When individuals employ the public powers of state courts to accomplish private ends, “they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed ... will be open to public inspection.” (<i>Ibid.</i>) Absent circumstances not present here, the court may seal the records at issue only if it expressly finds facts establishing that: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).) The party moving to have a record sealed bears the burden of proving such facts. (See <i>H.B. Fuller Company v. Doe</i> (2007) 151 Cal.App.4th 879, 894-895.) Petitioner has met such burden. The declaration in support of this motion sets forth facts sufficient to find overriding interests that will be prejudiced if this motion is denied. The proposed sealing is narrowly tailored and no less restrictive means exist to achieve the overriding interest. The motion is GRANTED. ROAs 3, 15, 17, 23, 29, 32, and 35 are to remain permanently sealed. If/when Petitioner is ready to file MC-355 and MC-356, Petitioner shall file both an unredacted form conditionally under seal and a redacted form for public record. The court will then permanently seal the unredacted versions. This order is without prejudice to the right of any person to seek an order unsealing the sealed documents pursuant to CRC, Rule 2.551(h).

		TENTATIVE RULING
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